

**CHAPTER xiv.**

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Hamilton Burgh.

A.D. 1925.

[9th April 1925.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament :

62 & 63 Vict.
c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed.

Confirma-
tion of
Order in
schedule.

2. This Act may be cited as the Hamilton Burgh Order Confirmation Act 1925.

Short title.

A.D. 1925.

SCHEDULE.

HAMILTON BURGH.

Provisional Order to extend the municipal and police boundaries of the Burgh of Hamilton in the County of Lanark to apply to the extended Burgh the provisions of the Local Acts and Orders relating to the existing Burgh and to make other provisions in relation thereto to enable the Corporation of the Burgh to borrow further money for the purposes of their Gas Undertaking and for other purposes.

WHEREAS the burgh of Hamilton in the county of Lanark (hereinafter called "the burgh") is a burgh which formerly contributed to send a member to Parliament but is now included within the Hamilton Parliamentary Division of the county of Lanark and the provost magistrates and councillors of the burgh (hereinafter called "the Corporation") are the police public health local and road authority within the burgh under the Burgh Police (Scotland) Acts 1892 to 1911 the Public Health (Scotland) Act 1897 and the Roads and Bridges (Scotland) Act 1878 and other public statutes and are possessed of a common good :

And whereas certain lands have been gifted to the burgh for recreation purposes and other lands embracing the Hamilton Palace policies the estate of Auchinraith and other areas have been purchased by the Corporation for burghal and public health purposes :

And whereas those areas are mainly situate outwith the existing burgh boundaries and it is expedient that the said areas so far as outwith the burgh should be brought within the burgh for administrative and other purposes :

And whereas the unrepealed portions of the local Acts and Orders mentioned in the Second Schedule to this Order are in force in the burgh and it is expedient that those Acts and Orders so far as not already in force within the districts annexed to the burgh by this Order and subject to the exception

specified in this Order should be extended to those districts : A.D. 1925.

And whereas it is expedient that the borrowing powers of the Corporation for gas purposes should be increased for the provision of additional plant for their gas undertaking and for additional gas mains and services :

And whereas it is expedient to confer such other powers on the Corporation and to make such other provisions in relation to the government and administration of the affairs of the burgh as are contained in this Order :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

1. This Order may be cited as the Hamilton Burgh Order 1925 and the Hamilton Burgh Acts 1878 to 1909 and this Order may be cited together as the Hamilton Burgh Acts 1878 to 1925 the Hamilton Gas Acts 1846 to 1921 and this Order may be cited together as the Hamilton Gas Acts 1846 to 1925 and the Hamilton Water Acts 1854 to 1921 and this Order may be cited together as the Hamilton Water Acts 1854 to 1925. Short title
and cita-
tions.

2. This Order shall (except as otherwise provided in this Order) commence and have effect on and from the fifteenth day of May one thousand nine hundred and twenty-five which date is hereinafter referred to as “the commencement of this Order.” Commence-
ment of
Order.

3. In this Order unless there be something in the context repugnant to such construction the following expressions shall have the meanings hereinafter assigned to them respectively (that is to say) :— Interpreta-
tion.

The expressions “the burgh” or “the existing burgh” mean the burgh of Hamilton within the limits and boundaries thereof existing immediately previous to the commencement of this Order ;

The expression “the Corporation” means the provost magistrates and councillors of the burgh ;

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The expression "the magistrates" means the magistrates of the burgh and includes the provost and bailies;

The expression "the dean of guild court" means the dean of guild court of the burgh;

The expression "the district annexed" means the areas described in the First Schedule to this Order;

The expression "the burgh as extended" means the existing burgh with the addition of the district annexed;

The expression "the county" means the county of Lanark;

The expression "the county council" means the county council of the county;

The expression "the district committee" means the district committee of the district of the Middle Ward of the county;

The expression "the Burgh Police Acts" means the Burgh Police (Scotland) Acts 1892 to 1911.

Limits of
burgh.

4. From and after the commencement of this Order the municipal and police boundaries of the burgh shall be and are hereby extended to and shall include and comprehend the existing burgh and the district annexed provided that the description of boundaries contained in the said First Schedule to this Order shall be subject to the rules of construction laid down in section 5 of the Representation of the People (Scotland) Act 1832.

Deposit of
map of
burgh.

5. A map of the burgh as extended of which seven copies have been signed by Philip Francis Wood counsel to the Secretary for Scotland under the Private Legislation Procedure (Scotland) Act 1899 shall within one month after the passing of the Act confirming this Order be deposited as follows (that is to say) one copy in the offices of the Secretary for Scotland Whitehall London one copy with the town clerk of the burgh two copies with the principal sheriff clerk of the county of Lanark in his offices at Glasgow and Hamilton respectively one copy with the Board of Trade one copy with the Commissioners of Customs and Excise and one copy with the Ministry of Agriculture and Fisheries. If there be any discrepancy between the boundaries as delineated on

the said map and the boundaries as described in the First Schedule to this Order the said map shall be deemed to be correct and shall prevail.

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6. Nothing in this Order contained shall interfere with the election of members to serve in Parliament for the county and the county shall for parliamentary purposes remain in all respects as if this Order had not been confirmed.

Order not to affect election of members to serve in Parliament.

7. From and after the commencement of this Order the district annexed shall be and the same is hereby for the purposes of this Order disjoined from the county and subject to the provisions of this Order all jurisdictions rights powers and authorities which previous to that date were exercised or exerciseable by the county council the district committee or other authority within the district annexed or any part thereof shall as from and after that date cease and determine with the exception of such jurisdictions rights powers and authorities (if any) as are then exercised or exerciseable by the county council the district committee or other local authority within the existing burgh or any part thereof.

District annexed disjoined from county of Lanark and jurisdictions to cease.

8. The lands and heritages within the district annexed shall remain parts and portions of the parishes of Hamilton and Blantyre within which they now lie and shall not be affected by any of the provisions of this Order in so far as regards the settlement relief or management of the poor the imposing or levying or the payment of poor rates or education rates or any burdens for purposes other than those for which the said lands and heritages will be assessed under the provisions of the Burgh Police Acts or any other public or local statutes presently affecting or which may hereafter affect the existing burgh and of this Order.

Parochial arrangements not to be affected.

9. The district annexed shall for all purposes be added to the existing wards in the burgh as follows (that is to say):—

District annexed to be added to existing wards.

(a) The portion of the district annexed described in Part I. of the First Schedule to this Order shall be added to and included in the fourth ward;

(b) The portion of the district annexed described in Part II. of the said First Schedule shall be added to and included in the first ward;

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- (c) The portion of the district annexed described in Part III. of the said First Schedule shall be added to and included in the fifth ward;
- (d) The portion of the district annexed described in Part IV. of the said First Schedule shall be added to and included in the fifth ward.

Public and
Local Acts
to apply to
burgh as
extended.

10. From and after the commencement of this Order the Burgh Police Acts and all other public general statutes and all local and private Acts and Orders which apply to the existing burgh including the local Acts and Orders mentioned in the Second Schedule to this Order so far as the said local Acts and Orders are not then in force within the district annexed and except as hereinafter provided and all byelaws regulations rules and orders made thereunder and the whole provisions powers and authorities of the Corporation and the magistrates under the said Acts and Orders shall extend and apply to the district annexed and may be exercised by the Corporation and the magistrates in the same manner and as fully in all respects within the district annexed as the same apply and may be exercised within the existing burgh. Provided that nothing in this Order shall extend the area of supply defined by the Hamilton Electric Lighting Order 1898.

Powers of
magistrates
and town
council &c.
to apply to
extended
burgh.

11. The Corporation the magistrates and the dean of guild court respectively shall have possess and may exercise over the burgh as extended and the inhabitants thereof all the jurisdictions (civil and criminal) powers rights and authorities which the Corporation magistrates and dean of guild court respectively of the existing burgh now have possess and exercise over the existing burgh and the inhabitants thereof whether at common law or by statute or otherwise including all powers of imposing levying and recovering rates assessments dues and charges and all rights privileges immunities and obligations at present enjoyed and possessed by or incumbent on the inhabitants of the existing burgh shall subject to the provisions of this Order extend and apply to the inhabitants of the burgh as extended.

Register of
voters and
valuation
roll.

12. For the purpose of the Acts in force for the time being relating to the registration of Parliamentary and Local Government voters and the election of town councillors for the respective wards in the burgh as extended

the district annexed shall notwithstanding anything in this Order contained be deemed to be and to have always been a part of the burgh and to have been included in the wards specified in the section of this Order of which the marginal note is "District annexed to be added to existing wards" for the making up of the register of voters.

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13. Subject to the provisions of this Order all mortifications endowments and trusts however constituted charitable bequests or other grants held or administered by the Corporation or the magistrates or office bearers of the existing burgh by themselves or in conjunction with any person or persons body or bodies (but under the liabilities to which the same are legally subject) shall be vested in held and administered by the Corporation or the magistrates or office bearers of the burgh as extended or so many of their number to be chosen by the Corporation for that purpose as are appointed by the deeds or writings under which such mortifications endowments trusts bequests or other grants are constituted together with the other trustees also therein nominated for the purposes and with the rights powers and authorities and subject to all the conditions and provisions under and upon which the same were conveyed granted or settled by the granters or makers of such mortifications endowments trusts bequests or other grants.

Existing
trusts
vested in
magistrates
and town
council.

14. The roads streets sewers bridges foot pavements and footpaths within the district annexed shall so far as the same are vested in the county council or other public authority be transferred to and vested in and be managed maintained and repaired by the Corporation along with and in the same way and manner and to the same extent as the roads streets sewers bridges foot pavements and footpaths within the existing burgh and the county council or such other authority shall be freed and relieved of the repair and maintenance of all such roads streets sewers bridges foot pavements and footpaths so far as within the district annexed in all time coming.

Roads &c.
in district
annexed.

15. Nothing in this Order contained with respect to the vesting of roads streets sewers bridges foot pavements and footpaths within the district annexed shall prevent any superiors owners or other persons by whom

Saving
rights in
roads foot
pavements
footpaths

A.D. 1925. —
sewers and drains. or by whose predecessors the same shall have been formed from recovering the cost or any proportion of the cost of forming the same from feuars or other persons under any agreements made between the said parties respectively.

Assessments in district annexed. 16. Every rate and assessment authorised to be levied and collected by the county council or other local authority having jurisdiction over the district annexed or any part or parts thereof but which shall not have been actually imposed previous to the commencement of this Order shall subject to the provisions of the section of this Order of which the marginal note is "Recovery of assessments within district annexed" cease and determine on that date within the district annexed and thereafter all rates and assessments leviable within the existing burgh by the Corporation shall thenceforth be leviable on and within the burgh as extended in the same way and manner as they are leviable on and within the existing burgh and until such time as a valuation roll has been completed by the Corporation in respect of the district annexed the valuation roll of the county so far as it relates to the district annexed shall be the valuation roll for the purposes of any rate or assessment levied by the Corporation within the district annexed.

Recovery of assessments within district annexed. 17. Every rate charge or assessment which shall have been actually imposed by the county council or any local or other authority who had jurisdiction within the district annexed or any part thereof previous to the commencement of this Order together with all arrears thereof shall continue to be due and payable and may be collected and levied by the authority which respectively imposed the same and by the same ways and means and under the same restrictions and regulations as if this Order had not been confirmed and shall be received and applied by such authorities respectively to and for the purposes for which the same were authorised to be levied.

For protection of county council and district committee. 18.—(1) The Corporation shall on the fifteenth day of May one thousand nine hundred and twenty-five pay to the county council as for themselves and on behalf of the district committee the sum of eighteen thousand pounds sterling with interest thereon at the rate of five per centum per annum from the aforesaid

date until the date of actual payment which sum shall subject as hereinafter provided be accepted by the county council and district committee as full compensation for the cesser of all such jurisdictions rights powers and authorities as were previous to the commencement of this Order exercised or exerciseable by the county council and district committee within the district annexed and are by the provisions of this Order to cease and determine from and after the commencement thereof. A.D. 1925.
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(2) In consideration of the foregoing payment the whole mains pipes and apparatus of the district committee within the district annexed (other than through-going mains necessary for the supply of other parts of the area of supply of the district committee) shall as at the commencement of this Order belong to and be vested in the Corporation.

(3) If and when the district committee shall resolve to light that part of the county adjacent to the district annexed known as the Whistleberry Road the Corporation shall bear the half of the cost of providing and maintaining the lighting of that part of the road in the county coinciding with the burgh boundary.

(4) If and when the area described in Part I. of the First Schedule to this Order is feued and built on to the extent of one-fourth of its lineal frontage to the highway leading from Hamilton to Motherwell commonly known as the Motherwell Road the Corporation shall contribute the half of the cost of providing and maintaining the lighting of the said road so far as borne by the county council or district committee.

(5) In all cases where one side of a road or street forms the boundary of the district annexed (the road or street itself being in the county) the Corporation shall be entitled to lay down construct and maintain in such road or street any sewer gas water or electrical mains or pipes necessary for the district annexed and for the protection of the county council and the district committee the provisions of section 35 of the Lanarkshire (Middle Ward District) Water Order 1913 shall apply as if the construction of any sewer gas water or electrical mains or pipes by the Corporation or repair thereof in such road or street were works authorised by the said Order and as if for the expression "the district committee" wherever occurring in the said section there

A.D. 1925. were substituted the expression "the Corporation" and
— for the expression "the Corporation" wherever occurring
in the said section there were substituted the expression
"the district committee."

(6) Nothing in this Order shall affect any existing agreement between the county council or the district committee and the Corporation with respect to the Corporation receiving and disposing of drainage from areas in the Middle Ward District so far as such areas are not included in the district annexed. The Corporation shall receive into their sewers presently existing or which may hereafter be constructed by them and deal with and dispose of the sewage from all subjects and premises in the county area immediately adjacent to the burgh as extended as far as the said subjects and premises by reason of the configuration of the ground naturally or conveniently drain towards the burgh as extended or the said sewers and with that object the Corporation in executing or renewing any scheme or schemes of sewerage or sewage purification for the district annexed shall make provision in such scheme or schemes for a reasonable development of the adjacent county area aforesaid all on terms to be mutually agreed on or failing agreement to be determined by an arbiter to be mutually appointed or failing agreement to be appointed by the sheriff of the county.

(7) Notwithstanding the provisions of this Order the district committee shall within the district annexed have the like powers of laying down maintaining using extending altering renewing relaying replacing enlarging and increasing the number and size of the main pipes in use or required for conveying water through the district annexed as they presently possess within the burgh but always subject to and in accordance with the provisions of subsections (5) and (6) of section 35 of the Lanarkshire (Middle Ward District) Water Order 1913.

Vesting
property of
burgh in
Corporation
for behoof
of the burgh
as extended.

19. The common good including all property heritable or moveable and all moneys revenues and income of every description arising therefrom vested in the Corporation for behoof of the existing burgh and all other properties heritable or moveable belonging to the Corporation at the commencement of this Order shall be

and are hereby vested in the Corporation and shall be held and applied by the Corporation for the behoof and benefit of the burgh as extended as they were previously to the commencement of this Order held and applied for the behoof and benefit of the existing burgh.

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20. Notwithstanding anything contained in this Order the assessments upon the owners of minerals in the district annexed leviable by the Corporation in respect of such minerals shall not in any year during the period ending on the fifteenth day of May one thousand nine hundred and thirty-two exceed the sum of two shillings and sevenpence farthing in the pound.

For protec-
tion of
owners of
minerals in
district
annexed.

21.—(1) Notwithstanding anything contained in this Order the total rates assessments and charges imposed and levied by the Corporation on any of the Bent Colliery Company Limited Wilsons and Clyde Coal Company Limited and Archibald Russell Limited (being all the occupiers of minerals in the district annexed) and their respective assignees and successors as occupiers of minerals wayleaves and all rights and privileges of whatever nature exerciseable by them respectively in the district annexed as incidental to the working and occupation of minerals whether within or outwith the district annexed shall not in any year during the period from and after the commencement of this Order until in the case of the Bent Colliery Company Limited the fifteenth day of May one thousand nine hundred and fifty-four in the case of Wilsons and Clyde Coal Company Limited the fifteenth day of May one thousand nine hundred and forty-eight and in the case of Archibald Russell Limited the fifteenth day of May one thousand nine hundred and forty-one (the dates aforesaid being the dates of termination of the current leases of the fore-said occupiers of minerals respectively) exceed in amount per pound of the annual value of such minerals wayleaves and others as appearing in the valuation roll of the burgh as extended (but subject to such deductions therefrom as may from time to time be in force) the aggregate amount per pound of the rates assessments and charges imposed and levied in each year during the said respective periods by the county council on occupiers of minerals wayleaves and others foresaid in such parts of the

For protec-
tion of
occupiers
of minerals
in district
annexed.

A.D. 1925. — parishes of Hamilton Blantyre and Bothwell as are in the Hamilton Police District of the county as existing at the commencement of this Order and are outside the boundaries of the burgh as extended For the purposes of this subsection there shall be excluded from the rates assessments and charges imposed and levied by the county council as aforesaid (a) such of them as may be imposed and levied for lighting and scavenging purposes in respect of which special districts have been or may be formed and (b) the excess over twopence per pound of any rate or assessment which may be imposed and levied for drainage purposes in respect of which special districts have been or may be formed provided that as regards the Bent Colliery Company Limited Wilsons and Clyde Coal Company Limited and Archibald Russell Limited respectively or their foresaids no rate or assessment imposed and levied by the county council for any of the purposes in respect of which special districts have been or may be formed shall be deemed to be included for the purpose of this subsection unless such special districts respectively shall be contiguous to any extent with the respective areas comprised in the district annexed within which are situated the minerals wayleaves and others foresaid of which they respectively are the occupiers and in the event of there being in any case more than one such contiguous special district for the same purpose the average rate per pound of the rates or assessments imposed and levied for such purpose in all such districts shall subject to the foresaid limit of twopence per pound in the case of drainage be deemed to be the amount of the rate or assessment for such purpose to be included as aforesaid.

(2) In any question between the Corporation and the foresaid occupiers of minerals during the respective periods mentioned in the immediately preceding subsection all or any sewerage pipes laid in the district annexed shall be deemed to be laid under the provisions of the Public Health (Scotland) Act 1897 and of any Act amending the same.

For protec-
tion of

22. For the protection of the Lanarkshire Tramways Company (in this section referred to as "the company").

the following provisions shall unless otherwise agreed between the Corporation and the company apply and have effect (that is to say) :—

A.D. 1925.
 —
 Lanarkshire
 Tramways
 Company.

(1) Notwithstanding anything contained in this Order the company shall not be liable under sections 16 and 17 of the Lanarkshire Tramways Order 1903 (in this section referred to as " the Order of 1903 ") to pay any greater sums to the Corporation in respect of so much of their tramways as is situate within the district annexed than they would have been liable to pay to the county council in respect thereof if this Order had not been confirmed :

(2) Notwithstanding anything contained in this Order the Corporation shall not be entitled to purchase such portion of the tramways authorised by the Order of 1903 as is situate within the district annexed unless the county council shall purchase the tramways outside the burghs of Hamilton and Motherwell and Wishaw which they are by section 50 of the Order of 1903 authorised to purchase and if and when the county council shall purchase the said tramways the Corporation shall also purchase and the company shall sell to the Corporation the said portion of tramways upon the terms prescribed by subsection (1) or subsection (2) of the said section according as the county council purchase under the said subsection (1) or subsection (2) and subsections (3) and (4) of the said section in their application to the said portion of tramways shall be read and have effect as if the Corporation and the said portion of tramways had been referred to therein in lieu of " the said council " and " the said undertaking."

23. From and after the passing of the Act confirming this Order section 8 of the Hamilton Water and Gas Order 1921 shall be read and take effect as if for the

Borrowing
 for gasworks
 purposes.

A.D. 1925. table occurring in subsection (1) of that section there were substituted the following table namely :—

Purpose.	Amount.	Period for Repayment calculated from the Date or Dates of borrowing.
	£	
Gas holders and tank - - -	35,000	40 years.
Vertical retorts - - -	61,265	
Boilers and setting and water gas plant - - -	3,000	
Government plant - - -	2,700	25 years.
Purifiers and house - - -	6,000	
Two exhausters and house - -	4,000	
New mains valves &c. - - -	31,785	
Hydration and workshop plant	4,250	
Sulphate plant additions - -	1,500	10 years.
Compressors - - -	2,000	
Meters cookers and fires - -	29,000	
	180,500	

Further
borrowing
powers.

24. The Corporation in addition to any other powers of borrowing which they now have or may obtain may after the passing of the Act confirming this Order for the purpose (a) of the payment under the provisions of the section of this Order whereof the marginal note is "For protection of county council and district committee" and for the purpose (b) of paying the costs charges and expenses of and incident to the preparing for obtaining and confirming this Order or otherwise in relation thereto borrow such money as may be necessary for those purposes respectively on the security of the assessment for the maintenance and repair of highways leviable by the Corporation under the Roads and Bridges (Scotland) Act 1878 and the Public Health General Assessment of the burgh or one of those assessments and in such proportions as the Corporation may determine and the Corporation may assign such assessment or assessments or so much or such part or parts thereof respectively as may be required as security for the money which may be so borrowed under the provisions of this section. Provided that any money borrowed under this section for the purpose (a) above mentioned shall be repaid within a period of fifteen

years from the date or dates of borrowing the same and that any money borrowed for the purpose (b) above mentioned shall be repaid within five years from the passing of the Act confirming this Order. A.D. 1925.
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25. The Secretary for Scotland may in order to meet the circumstances arising from the extension of the existing burgh under this Order by order vary the procedure prescribed by or in pursuance of the Temperance (Scotland) Act 1913 in connection with the taking of polls under the last-mentioned Act or otherwise including any dates fixed in connection with such procedure. Variation of procedure under Temperance (Scotland) Act 1913.

26. All costs charges and expenses of and incident to the preparing for obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Corporation out of the revenue of the common good of the burgh or of the gas undertaking of the Corporation or out of the Burgh General Assessment or the Public Health General Assessment or the Roads and Bridges Maintenance Assessment or out of the money which the Corporation are by this Order authorised to borrow or out of any one or more of them as the Corporation may determine. Costs of Order.

The SCHEDULES referred to in the foregoing Order.

THE FIRST SCHEDULE.

PART I.

Commencing at the existing burgh boundary in Edinburgh Road near to Hamilton Palace railings thence in a north-easterly direction along the line of the wall enclosing the Hamilton Low Parks and Policy Grounds until the said line intersects the centre of the River Clyde at the present Hamilton Bridge thence following the centre of the said River Clyde in a north and north-westerly direction to Bothwell Bridge thence along the eastern wall of said bridge and the wall enclosing the Hamilton Policies in a southerly direction until the said wall meets the existing burgh boundary in Bothwell Road thence following in a south-easterly and easterly direction the said existing burgh boundary partly along the wall enclosing the Hamilton Policies in an irregular

A.D. 1925. line and through the Hamilton Palace Policies until the said existing burgh boundary terminates in Edinburgh Road at the point first mentioned. The area included within the above boundaries is situate in the parish of Hamilton.

PART II.

Commencing at the centre of the River Clyde on the eastern side of Bothwell Bridge thence in a south-westerly direction along the centre of the said river for a distance of 110 yards or thereby thence following the boundary of the lands of Auchinraith at Park Burn thence along said burn and crossing the Whistleberry Road to the boundary wall of the said lands of Auchinraith thence along said wall for a distance of 600 yards or thereby to the junction of the railway sidings at the Whistleberry Colliery thence in a south-west and south direction following the boundary fence of Auchinraith Estate as acquired by the town council till said boundary meets the fence on the lands of Whitehill at the access road between said last-mentioned lands and the lands of Auchinraith thence along the southern side of the said access road in a north-easterly direction and thence along said road in a south-easterly direction and in a curved line along the boundary fence of the Backmuir Plantation until said boundary meets the boundary fence of the sewage purification works belonging to the Hamilton Town Council thence following the lines of said last-mentioned boundary fence in a south-westerly south and south-easterly direction to the existing burgh boundary at Wellshaw Burn thence following in a north-westerly direction the line of said burn thence along the existing burgh boundary on the north of the Hamilton Public Park and crossing the said Bothwell Road to the wall enclosing the Hamilton Policies thence in a northerly direction along the line of said wall to the centre of the River Clyde on the eastern boundary of Bothwell Bridge. The area included within the above boundaries is situate partly in the parish of Hamilton and partly in the parish of Blantyre.

PART III.

Commencing at a point at the termination of the present burgh boundary at Glenlee Bridge in High Blantyre Road thence in a north-westerly direction for a distance of 100 yards or thereby along the southern boundary of the lands of Glenlee thence in a southerly direction following the boundary between the said lands of Glenlee and the lands of Burnbrae until said boundary meets the existing burgh boundary at the Red Burn in the lands of Glenlee thence following said burn to the point of commencement at Glenlee Bridge. The area included in the above boundaries is situate in the parish of Blantyre.

PART IV.

A.D. 1925.
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Commencing at the present burgh boundary at Udston Stables thence in a south-easterly direction along the north-eastern boundary of the road leading to Hillhouse for a distance of 267 yards or thereby thence along the fence on the north-western boundary of the accommodation road leading to Udston Farm until said fence meets the existing burgh boundary and thence following said existing burgh boundary to the point of commencement The area included in the above boundaries is situate in the parish of Hamilton.

THE SECOND SCHEDULE.

The Hamilton New Gaslight Act 1846.

The Hamilton Waterworks Act 1854.

The Hamilton Waterworks Amendment Act 1863.

The Hamilton Water Act 1875.

The Hamilton Burgh Act 1878.

The Hamilton Water Act 1888.

The Hamilton Water Act 1898.

The Hamilton Electric Lighting Order 1898.

The Hamilton Burgh Act 1900.

The Hamilton Burgh Order 1901.

The Hamilton Gas Order 1901.

The Hamilton Burgh Order 1903.

The Hamilton Gas Order 1904.

The Hamilton Burgh Order 1909.

The Hamilton Water and Gas Order 1921.

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